

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the City of Walnut Creek's Demurrer to Plaintiff's Complaint. Since the Demurrer is not opposed, this Case Management Conference is **vacated**. No appearance is required on May 13, 2026.

3. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 14. If the tentative ruling is uncontested, this CMC is continued to September 2, 2026 at 9:00 a.m..

4. 9:00 AM CASE NUMBER: N25-1365

CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 17. If the tentative ruling is uncontested, this CMC is continued to August 13, 2026 at 8:30 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**

FILED BY: MILLER, RAYMOND R.

TENTATIVE RULING:

Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal, filed on November 18, 2025 was continued from March 24, 2026 to April 15, 2026 because the Court was not satisfied that Defendant filed proof of service to Plaintiffs of this Motion.

On April 15, 2026, the Court convened the hearing and found, again, that procedural issues pertaining to service remain. (See Unreported Minute Order dated April 15, 2026). The Court continued the hearing from April 15 to May 13, 2026 and allowed Plaintiffs to file an opposition.

To date, no opposition has been filed with the Court. As such, there is good cause to grant

Defendant's Motion for Attorney's Fees and Costs against Plaintiffs incurred on appeal.

Ruling

1. Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **granted**.
2. Plaintiff shall pay \$30,000 in attorney's fees and \$1,022 in costs, for a total of \$31,022 no later than thirty (30) days from the date of service of this order.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling to the proposed order.
4. No appearance is required at the hearing on May 13, 2026.

6. 9:00 AM CASE NUMBER: C23-01839

CASE NAME: DREW MALM VS. SCOTT HAMMEL

HEARING ON SUMMARY MOTION

FILED BY: HAMMEL, SCOTT

TENTATIVE RULING:

Introduction

Before the Court is Defendants SCOTT HAMMEL INDIVIDUALLY AND AS TRUSTEE OF THE JOAN E. SENAUSKY SURVIVORS TRUST; LUBOFF SENAUSKY, AN INDIVIDUAL; MARK WILLIAM SENAUSKY, AN INDIVIDUAL; VAL STEPHEN SENAUSKY, AN INDIVIDUAL; HILL HOUSE PROPERTY, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY's ("Defendants") Motion for Summary Judgment, or in the alternative summary adjudication to Plaintiff Drew Malm's Second Amended Complaint ("SAC").

After sustaining Defendants' demurrers, the only remaining causes of action in the SAC are (1) the First Cause of Action for Breach of Contract against Hammel only; (2) the Sixth Cause of Action for Intentional Interference with Contractual Relations against Luboff only; and (3) the Seventh Cause of Action for Voidable Transfer (Civil Code § 3439.04) against all Defendants.³ (Ex. 10.)

For the following reasons, the Motion for Summary Judgment is granted.

Factual Background

Plaintiff Drew Malm was retained by Scott Hammel ("Hammel"), in his capacity as Trustee of the Joan E. Senavsky Survivors Trust (the "Trust"), to market and attempt to sell the real properties located at 140 Cielo Via and 0 Arbol Via, Walnut Creek, California (collectively, the "Properties"). (Undisputed Material Fact ("UMF") No. 1.) The Trust and Malm entered into a Residential Listing Agreement (the "Listing Agreement") on November 2, 2020. (UMF No. 2.) No offers to purchase the Properties were obtained during the initial listing period, so at Malm's request, the Listing Agreement was extended with the new expiration date to be December 31, 2021. (S. Hammel Decl., ¶ 5.) During the extended listing period, Malm obtained a single written offer to purchase the Properties from the Potential Buyers.¹ (UMF No. 3.) During their contingency period, Potential Buyers decided to cancel their purchase offer because they had concerns with the legal description of the property and its boundary lines. (UMF No. 4.) The Listing Agreement expired on December 31, 2021. (UMF No. 5.)